



DYNASTY FUTURES
dynastyfuturesdyn.com

Affiliate Non-Disclosure Agreement
Dynasty Futures LLC • Wyoming

AFFILIATE NON-DISCLOSURE AGREEMENT

Confidentiality, Non-Disparagement & Communications Standards

Effective Date: The date Affiliate completes registration and accepts this Agreement

Disclosing Party: Dynasty Futures LLC, a Wyoming Limited Liability Company ("Dynasty Futures")

Receiving Party: The individual or entity approved as an Affiliate of Dynasty Futures ("Affiliate")

This Affiliate Non-Disclosure Agreement ("Agreement") is entered into between Dynasty Futures and Affiliate in connection with Affiliate's participation in the Dynasty Futures Affiliate Marketing Program. By accepting the Affiliate Agreement or otherwise participating in the Program, Affiliate agrees to be bound by the terms of this Agreement.

1. DEFINITIONS

"Affiliate Program" or "Program" means the Dynasty Futures Affiliate Marketing Program, including all commission structures, tracking systems, platform integrations, and marketing resources provided to Affiliate.

"Confidential Information" means any non-public information disclosed by Dynasty Futures to Affiliate — directly, indirectly, or through observation — in connection with the Program, including without limitation: internal business strategies, financial data, commission payout structures and thresholds not publicly published, trader data or identifiers, platform technology, software systems, vendor relationships, internal policies and procedures, legal strategies, dispute records, employee or contractor information, and any other information designated as confidential or that a reasonable person would understand to be confidential given the nature of the disclosure.

"Permitted Communications" means truthful, accurate, FTC-compliant statements about Dynasty Futures' publicly available products and programs, made within the scope of Affiliate's marketing activities pursuant to the Affiliate Agreement.

"Public Channels" means any medium accessible to the general public, including social media platforms (Instagram, TikTok, YouTube, X/Twitter, LinkedIn, Facebook, Reddit, Discord, and similar), websites, blogs, podcasts, forums, email newsletters, press releases, or any other broadcast or digital distribution channel.

"Dynasty Futures Parties" means Dynasty Futures LLC and its members, officers, directors, employees, contractors, agents, successors, and assigns.

2. CONFIDENTIALITY OBLIGATIONS

2.1 Non-Disclosure. Affiliate shall hold all Confidential Information in strict confidence and shall not disclose, publish, distribute, or transmit any Confidential Information to any third party — including on Public Channels — without Dynasty Futures' prior written consent.

2.2 No Unauthorized Use. Affiliate shall use Confidential Information solely to perform Affiliate's obligations under the Affiliate Agreement. Affiliate shall not use Confidential Information for any competitive purpose, personal gain beyond earned commissions, or in any manner adverse to Dynasty Futures' interests.

2.3 Standard of Care. Affiliate shall protect Confidential Information with at least the same degree of care Affiliate uses to protect its own confidential information, and in no event less than reasonable care.

2.4 Personnel & Access. Affiliate shall not share Confidential Information with employees, contractors, or other individuals except on a strict need-to-know basis for the purpose of performing Affiliate's obligations. All such individuals must be bound by confidentiality obligations no less protective than those in this Agreement.

2.5 Exclusions. The confidentiality obligations in this Section 2 do not apply to information that: (a) is or becomes publicly available through no fault of Affiliate; (b) was rightfully known to Affiliate prior to disclosure by Dynasty Futures without any obligation of confidentiality; (c) is independently developed by Affiliate without use of or reference to Confidential Information; or (d) is required to be disclosed by applicable law or court order, provided that Affiliate gives Dynasty Futures prompt written notice prior to disclosure and cooperates with Dynasty Futures to seek a protective order or other appropriate relief.

3. PERMITTED COMMUNICATIONS

Subject to compliance with the Affiliate Agreement (including all FTC disclosure requirements) and this Agreement, Affiliate is permitted to:

3.1 Describe Dynasty Futures' publicly available evaluation programs, account tiers, general payout structure, and product features using accurate information drawn from Dynasty Futures' official website, published materials, or Approved Content.

3.2 Share Affiliate's genuine, truthful personal experience with Dynasty Futures' products, including personal trading results from a funded account, provided all performance disclosures required by the Affiliate Agreement (Section 3.3) are included and the content has received Dynasty Futures' prior written approval.

3.3 Use Dynasty Futures' brand assets in compliance with the Brand Guidelines and within the scope of the limited license granted in the Affiliate Agreement.

3.4 Reference publicly available information about Dynasty Futures, including information Dynasty Futures has officially published on its website, official social media accounts, or in press releases.

3.5 State truthfully that Affiliate is an authorized Dynasty Futures affiliate and earns a commission on referred sales, with the required FTC disclosures.

4. RESTRICTED & PROHIBITED COMMUNICATIONS

The following are strictly prohibited. Affiliate shall not, directly or indirectly:

4.1 Internal Information. Disclose, hint at, or speculate about any non-public information regarding Dynasty Futures' internal operations, financial performance, trader payout disputes, proprietary risk management systems, internal communications, employee matters, vendor relationships, or legal proceedings.

4.2 Trader & User Data. Disclose, share, or reference identifying information about any Dynasty Futures trader, user, or program participant — including trading performance, account status, payout history, or demographic information — without that individual's express written consent.

4.3 False or Misleading Statements. Make any statement — on Public Channels or privately — that is false, misleading, exaggerated, or unverifiable regarding Dynasty Futures, its products, payout rates, profit splits, pass rates, evaluation structure, or any aspect of the Program.

4.4 Earnings & Performance Misrepresentation. Represent or imply that Dynasty Futures guarantees profits, income, or trading success; that traders routinely earn specific income levels; or that funded trading involves real capital markets, in each case without the required CFTC Rule 4.41 and Dynasty Futures-approved disclaimers.

4.5 Disparagement. Make any disparaging, derogatory, defamatory, or reputationally harmful statement about Dynasty Futures or any Dynasty Futures Party — whether on Public Channels, in private communications, in reviews, or in any other forum — regardless of whether the statement is framed as opinion.

4.6 Legal & Regulatory Speculation. Publicly speculate about, characterize, or comment on Dynasty Futures' regulatory status, pending legal matters, or compliance with any law or regulation without Dynasty Futures' prior written consent.

4.7 Unauthorized Attribution. Attribute any statement, policy position, or product detail to Dynasty Futures or any Dynasty Futures Party unless the statement is drawn verbatim from Dynasty Futures' official published materials.

4.8 Competitive Misuse. Use Confidential Information to benefit any Dynasty Futures competitor, or disclose Confidential Information to any person or entity that competes with Dynasty Futures.

4.9 Account or Commission Details. Disclose the specific commission rates, tier thresholds, Founding Affiliate offer terms, or payout schedules applicable to Affiliate's account, except where such terms are publicly published by Dynasty Futures.

4.10 Post-Termination. After termination of the Affiliate Agreement for any reason, continue to hold out as an authorized Dynasty Futures affiliate, use Dynasty Futures brand assets, or make any representation — accurate or inaccurate — implying an ongoing relationship with Dynasty Futures.

5. SOCIAL MEDIA & PUBLIC STATEMENTS

5.1 Affiliate is solely responsible for all content posted on Affiliate's Public Channels in connection with the Program. Dynasty Futures' approval of a piece of content does not constitute ongoing authorization to publish similar content without additional approval.

5.2 Affiliate must not engage in any coordinated, amplified, or inauthentic promotion of Dynasty Futures, including the purchase of engagement (likes, followers, comments, shares) or participation in engagement pods designed to inflate the apparent reach or credibility of Dynasty Futures-related content.

5.3 If Affiliate publishes content in connection with the Program that Dynasty Futures subsequently identifies as non-compliant with this Agreement or the Affiliate Agreement, Affiliate must remove or correct such content within forty-eight (48) hours of Dynasty Futures' written notice.

5.4 Affiliate must not respond to, publicly engage with, amplify, or share any media, legal, regulatory, or third-party inquiry regarding Dynasty Futures without Dynasty Futures' prior written consent. Affiliate must promptly notify Dynasty Futures (within twenty-four (24) hours) if Affiliate becomes aware of any such inquiry, media contact, or legal request.

5.5 Affiliate's public statements must not imply that Dynasty Futures endorses, is affiliated with, or sponsors any third-party product, service, or brand unless Dynasty Futures has provided its express written approval for that specific endorsement.

6. NON-DISPARAGEMENT

6.1 Affiliate agrees not to make, publish, or cause to be published any negative, disparaging, defamatory, or reputationally harmful statement about Dynasty Futures or any Dynasty Futures Party in any forum, including but not limited to social media, review platforms (Trustpilot, Google, Reddit, Discord, BBB, and similar), podcasts, YouTube, or private communications intended for distribution to third parties.

6.2 This Section 6 does not prohibit Affiliate from: (a) making truthful statements about Affiliate's genuine personal experience with Dynasty Futures in response to a direct, private inquiry from a third party, provided such statements are accurate, balanced, and not disparaging; or (b) making any disclosure required by law or court order, subject to the notice requirements in Section 2.5.

6.3 Dynasty Futures agrees to treat Affiliate fairly and will not make disparaging public statements about Affiliate by name without cause.

7. RETURN & DESTRUCTION OF CONFIDENTIAL INFORMATION

7.1 Upon termination of the Affiliate Agreement or upon Dynasty Futures' written request, Affiliate shall promptly return or permanently destroy all Confidential Information in Affiliate's possession or control, including all copies, notes, summaries, and derivative works, and shall certify such return or destruction in writing within ten (10) business days.

7.2 Affiliate's obligation to protect Confidential Information continues following any return or destruction.

8. TERM & SURVIVAL

8.1 This Agreement commences on the Effective Date and continues for the duration of Affiliate's participation in the Program.

8.2 All confidentiality, non-disclosure, restricted communications, and non-disparagement obligations survive termination of the Affiliate Agreement for a period of three (3) years from the date of termination, except that obligations with respect to trade secrets survive indefinitely.

9. REMEDIES

9.1 Affiliate acknowledges that any breach or threatened breach of this Agreement would cause Dynasty Futures irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, Dynasty Futures shall be entitled, in addition to all other remedies available at law or in equity, to seek immediate injunctive and other equitable relief in any court of competent jurisdiction to prevent or restrain any actual or threatened breach, without the requirement of posting bond or other security and without proof of actual damages.

9.2 In the event of a material breach by Affiliate of this Agreement: (a) Dynasty Futures may immediately terminate the Affiliate Agreement and forfeit all unpaid commissions; (b) Dynasty Futures may seek actual damages, including reputational harm, legal fees, regulatory costs, and any costs associated with remediation of the breach; and (c) Dynasty Futures may seek statutory damages where applicable, including under applicable defamation, trade secret, or unfair competition laws.

9.3 Affiliate shall reimburse Dynasty Futures for all reasonable attorneys' fees, court costs, and litigation expenses incurred by Dynasty Futures in successfully enforcing this Agreement.

10. GENERAL PROVISIONS

10.1 Governing Law. This Agreement is governed by the laws of the State of Wyoming, without regard to conflict-of-law principles.

10.2 Dispute Resolution. Any dispute arising out of or related to this Agreement shall be resolved by binding individual arbitration under the AAA Commercial Arbitration Rules, consistent with Section 11 of the Affiliate Agreement. Class action waiver applies.

10.3 Integration. This Agreement supplements and is incorporated into the Affiliate Agreement. In the event of a conflict between this Agreement and the Affiliate Agreement regarding confidentiality or communications obligations, the more protective provision shall govern.

10.4 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

10.5 No Waiver. Dynasty Futures' failure to enforce any provision shall not constitute a waiver of its rights to enforce that provision or any other provision in the future.

10.6 Amendment. Dynasty Futures may update this Agreement upon thirty (30) days' written notice. Continued participation in the Program following notice constitutes acceptance of the revised terms.

10.7 Electronic Acceptance. Affiliate's electronic acceptance of the Affiliate Agreement or this Agreement constitutes a valid, binding signature under the E-SIGN Act (15 U.S.C. § 7001) and applicable state law.

10.8 Entire Agreement. Together with the Affiliate Agreement, this Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior representations, negotiations, or understandings relating to confidentiality and communications obligations.

QUESTIONS ABOUT THIS AGREEMENT?

Contact us at support@dynastyfuturesdyn.com • dynastyfuturesdyn.com/affiliates